

**Advisory Services Nursery Crop Insurance
12FPC426Q0017**

Description - The U.S. Department of Agriculture (USDA) Federal Crop Insurance Corporation (FCIC)/Risk Management Agency (RMA) requests services in an advisory capacity for the Nursery Value Select Pilot Crop Insurance Program for subtropical and temperate plants. This is a combined synopsis/solicitation for commercial items prepared in accordance with the format in subpart 12.6 of the Federal Acquisition.

This announcement constitutes the only solicitation; quotes are being requested, and a separate written solicitation will not be issued.

Solicitation number 12FPC426Q0017 is issued as a Request for Quotation (RFQ) for Advisory Services for Nursery Crop Insurance Program for Subtropical and Temperate Plants.

This acquisition is set-aside for small business concerns. This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.

The applicable North American Industry Classification Standard Code is 541611. This solicitation is being issued as 100% Small Business Set Aside. All responsible sources may submit a quotation which will be considered by the agency.

Anticipated Date of Occupancy/Period of Performance is June 1, 2026 – May 31, 2027, with two possible option years.

Statement of Requirement

The horticulture specialist will assist RMA personnel and other interested parties to provide advice on nursery issues related to subtropical and temperate plants in areas covered by the 10 RMA Regional Offices. The Contractor shall perform the following tasks as detailed below:

- (i) Advise, assist, and coordinate with RMA personnel and other interested parties on questions and issues related to nursery plant production practices, plant classification and taxonomy, hardiness zone limitations, storage and plant protection procedures and requirements, risk assessment, wholesale marketing, and nursery crop insurance procedures.
- (ii) Attend RMA and nursery industry meetings, as necessary.
- (iii) Aid and participate with RMA personnel in large claims, as necessary.
- (iv) Possess knowledge of the NVS pilot crop insurance program to advise and assist RMA in modifications to the nursery program.

Please see Attachment 3 - Performance Work Statement for additional information.

Price:

Vendors shall provide their quoted pricing with Attachment 2 – Pricing Sheet. All items/CLINS must have pricing quoted.

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Pricing shall be labor hour.

This contract is for a base year (12 months) with two (2) possible option years.

**Federal Acquisition Regulation (FAR) and United States Department of Aquiculture
Acquisition Regulation (AGAR) Clauses and Provisions**

The clauses and provisions contained herein are applicable to any order awarded as a result of this solicitation. The terms and conditions set forth herein supersede all other terms and conditions. Acceptance of the order in accordance with (IAW) FAR 12.201-1(b)(2) constitutes acceptance of all terms and conditions contained herein.

As part of the Revolutionary FAR Overhaul (RFO), system updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in this solicitation. Contracting officers will rely on representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

52.252-2 Clauses Incorporated by Reference Feb 1998

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also the full text of the clause may be accessed electronically at Internet address <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

- 52.212-4 Terms and Conditions—Commercial Products and Commercial Services (Nov 2025)
 - ☒ Alternate I (Nov 2025) of 52.212-4
- 52.203-17 Contractor Employee Whistleblower Rights (Nov 2023)
- 52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)
- 52.222-50 Combating Trafficking in Persons (Nov 2025)
 - ☒ Alternate I (Nov 2025) of 52.222-50
- 52.226-8 Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)
- 52.232-40 Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)
- 52.233-3 Protest After Award (Sep 2025)
- 52.233-4 Applicable Law for Breach of Contract Claim (Sep 2025)
- 52.240-91 Security Prohibitions and Exclusions (Nov 2025)
 - ☒ Alternate I (Nov 2025) of 52.240-91
- 52.244-6 Subcontracts for Commercial Products and Commercial Services (Nov 2025)

The following clauses are applicable :

- ☒ 52.204-13 System for Award Management—Maintenance (Nov 2025)
- ☒ 52.209-6 Protecting the Government’s Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (Sep 2025)

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- ☒ 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (Sep 2025)
- ☒ 52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Nov 2025)
- ☒ 52.222-35 Equal Opportunity for Veterans (Nov 2025)
 - ☐ Alternate I (Jul 2014) of 52.222-35
- ☒ 52.222-36 Equal Opportunity for Workers with Disabilities (Nov 2025)
 - ☐ Alternate I (Jul 2014) of 52.222-36
- ☒ 52.222-37 Employment Reports on Veterans (Nov 2025)
- ☒ 52.222-40 Notification of Employee Rights Under the National Labor Relations Act (Dec 2010)
- ☒ 52.222-54 Employment Eligibility Verification (Nov 2025)
- ☒ 52.232-33 Payment by Electronic Funds Transfer— System for Award Management (Oct 2018)

The Contractor shall comply with the following FAR Clauses for Commercial Services.

- ☒ 52.222-53 Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (Nov 2025)

AGAR Clauses

- 452.203-71 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Compliance (Dec 2025)

(a) By entering into this contract, the Contractor certifies that:

1. It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution, and it will remain compliant for the duration of the contract.
2. Neither it nor any subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution, and the Contractor and any subcontractor or teaming partner will not do so for the duration of the contract.

(b) If the Contractor participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, the Contractor certifies that it will remain compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The Contractor affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract

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are predicated on compliance with the above requirements, and therefore the Contractor is not eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

(e) Submission of a knowing false statement relating to Contractor's compliance with the above requirements and/or eligibility for the contract may subject the Contractor to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) The Contractor must include the provisions of this clause in all subcontract solicitations.

(g) Failure on the part of the Contractor or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate this contract for default.

(End of Clause)

452.204-70 Modification for Contract Closeout (Nov 2025)

(a) If unliquidated funds in the amount of \$1000 or less remain on the contract, the Contracting Officer (Contracting Officer) shall issue a unilateral modification for deobligation. The contractor will receive a copy of the modification but will not be required to provide a signature. The Contracting Officer shall immediately proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(b) Upon contract closeout for contracts utilizing SAP: if unliquidated funds of more than \$1000 remain on the contract, the Contracting Officer shall issue a bilateral modification for deobligation. The contractor will receive a copy of the modification and will be required to provide a signature. (The Contracting Officer may also request a "Contractor Release of Claims" be completed by the contractor, although not required for contracts and orders using SAP.) If the bilateral modification and Release of Claims are not returned to the Contracting Officer within 60 days, the Contracting Officer shall release the modification as unilateral and proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(c) Upon contract closeout for contracts utilizing anything other than cost reimbursement, if unliquidated funds of more than \$1000 remain on the contract, the Contracting Officer shall issue a bilateral modification for deobligation. The contractor will receive a copy of the modification and a "Contractor Release of Claims" and will be required to provide a signature on both forms. If the bilateral modification and Release of Claims are not returned to the Contracting Officer within 120 days, the Contracting Officer shall release the modification as unilateral and proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(End of Clause)

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Solicitation Information

Award Type

It is anticipated that a labor hour contract consisting of one (1) one-year base period and two (2) one-year option periods shall be awarded as a result of this synopsis/solicitation. The total duration of this contract shall not exceed three (3) years.

The Government intends to make one award from this solicitation. Therefore, to be considered responsive, contractors must submit pricing for all CLINS.

Evaluation and Basis for Award

The provision at FAR 52.212-2, Evaluation—Commercial Products and Commercial Services is not applicable to this solicitation. In lieu of this provision, quotes will be evaluated in accordance with FAR 12.203 based on the criteria listed below.

The Government will award a contract resulting from this solicitation to the one responsible quoter whose quote submission conforms to the solicitation and is determined to be the best overall value to the Government through the use of the tradeoff process, price and other factors considered.

Quoters must receive at least a MEETS EXPECTATIONS rating on the non-price factors to be eligible for award. The Government reserves the right to award to a higher priced Quoter who is rated EXCEEDS EXPECTATIONS for Technical Capability; and/or EXCEEDS EXPECTATIONS for Past Performance; and proposes a fair and reasonable price.

Technical Capability and Past Performance are equal in importance and when combined are significantly more important than Price.

Technical Capability

1. Cover Page (not to exceed 2 pages) –

At a minimum, this page shall include the Vendor's name, address, taxpayer ID number, CAGE code; Vendor's Point of Contact to include name, title, phone number, and e-mail address; the solicitation number and date of submission. This page shall also include a quotation validity date of no less than 90 days.

2. Executive Summary (not to exceed 2 pages)

The Executive Summary shall provide a concise narrative summary of your technical quotation, highlighting any key or unique features.

3. Technical Capability (not to exceed 17 pages)

At a minimum, the following shall be addressed:

- a. A description (in the Contractors own words) of the technical approach that satisfies the requirements of the Performance Work Statement (PWS). This discussion shall clearly demonstrate the Contractors understanding for performing and managing the work,

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including the proposed methods to ensure that schedules are met, the methods for achieving the goals and objectives stated herein, and any other information (i.e., difficulties, uncertainties, and risks associated with the work) that may bear on your ability to perform the PWS requirements successfully. A simple repetition and/or paraphrasing of the requirements set forth in this solicitation is unlikely to provide for an adequate demonstration by prospective Contractors of a proper understanding of the scope of effort required and may be judged as insufficient for establishing technical capability.

- b. The Contractor shall describe its management approach and business model, clearly outlining how it plans to accomplish the requirements of the PWS. The narrative shall address the Contractors plan for recruiting, training, and retention of qualified personnel to fill vacant positions and maintain continuity of personnel throughout performance of the contract.
- c. The Contractor shall include its organizational structure and its staffing plan, which clearly outlines staffing levels that align personnel by proposed labor category and staffing information to support the proposed level of effort. The staffing plan shall address how the Contractor will manage employee absenteeism as it relates to impact on operations and PWS requirements.

Evaluation Criteria/Methodology:

Capability rating standards focus on strengths, weaknesses and/or risks of Contractor's quote. Capability shall be rated using rating listed in table below. If a Contractor's quote demonstrates failure to meet a government requirement, quote will be deemed as **un-awardable**, resulting in an unacceptable rating.

RATING	DESCRIPTION
EXCEEDS EXPECTATIONS	Quote exceeds the requirements of the solicitation by providing an exceptional approach and understanding of the requirements and an ability to successfully execute the project.
MEETS EXPECTATIONS	Quote meets requirements and indicates an adequate approach and understanding of the requirements The Quote demonstrates an ability to successfully execute the requirements.
DOES NOT MEET EXPECTATION	Quote does not meet requirements of the solicitation. The Quote does not demonstrate an understanding of the requirements and fails to demonstrate an ability to execute the requirements. Quote is un-awardable.

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Past Performance

Submission Requirements, maximum 10 pages:

1. Quoter shall provide a list of similar work for projects completed in the past five (5) years that demonstrates experience in same or significantly similar scope, magnitude, and complexity of effort this solicitation requires.
2. Quoter shall include a summary of the quoter's most recent, three (3) similar projects.

For any past work stated, provide:

- applicable customer name
- contract dollar values
- description of work performed,
- period of performance, and
- name, telephone number and e-mail address of the person who can verify your past experience/performance.

The quoter and subcontractors past performance on recent (completed within the last 5 years) and relevant contracts must demonstrate successful performance on contract requirements,

quality and timeliness of delivery of goods and services, effective management of subcontractors, cost management, level of communication between the contracting parties, proactive management and customer satisfaction.

The Government will evaluate quoter's submissions and past performance through references that can support their past performance in performing tasks similar to the requirements defined under this RFQ. The Government will use at its discretion to determine the sources of past performance information used in the evaluation, and the information may be obtained from references provided by the vendor, the agency's knowledge of contractor performance, other government agencies or commercial entities, or past performance databases.

Evaluation Criteria/Methodology:

RATING	DESCRIPTION
EXCEEDS EXPECTATIONS	Quoter provided experience exceeding the 3 similar projects and exceeded 3 references that can support their past performance and past performance has essentially the same scope, magnitude of effort and complexities this solicitation requires.
MEETS EXPECTATIONS	Quoter provided at least 3 similar projects and 3 reference that can support their experience and past performance and experience and past performance has much of the scope, magnitude of effort and complexities this solicitation requires.
DOES NOT MEET EXPECTATION	Quote does not meet requirements of the solicitation. The Quote does not demonstrate an understanding of the requirements and fails

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	to demonstrate an ability to execute the requirements. Quote is un-awardable.
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Past performance assessments will be considered in conjunction with technical evaluation results to determine an overall confidence rating, using the ratings identified in the table below.

CONFIDENCE ASSESSMENT BASED ON PERFORMANCE AND TECHNICAL EVALUATION	
The following ratings represent the Government evaluation team's judgement of the probability of an offeror successfully accomplishing the proposed effort based on both technical capabilities/capacities and the offeror's demonstrated past performance.	
Rating	Description
SUBSTANTIAL CONFIDENCE	The government has a high expectation that the Quoter will successfully perform the required effort.
SATISFACTORY CONFIDENCE	The government has an expectation that the Quoter will successfully perform the required effort.
LIMITED CONFIDENCE	The government has a low expectation that the Quoter will successfully perform the required effort.
NO CONFIDENCE	The government has no expectation that the Quoter will be able to successfully perform the required effort.
UNKNOWN CONFIDENCE	No performance record is identifiable, or the Quoter's performance record is so sparse that no confidence assessment rating can be reasonably assigned.

Price

The quoter shall provide pricing as requested in Attachment 2- Pricing Sheet. Price quote shall consist of labor hours for the services in the PWS. The Quoter shall provide a description of how the rates (or discounted rates, if quoted) were used in the development of the price quote. Pricing will be evaluated to determine reasonableness once quotes have been determined technically acceptable by the Government. Pricing that is unrealistically low may be considered an indication that the Quoter does not possess adequate understanding of the requirement or the requisite technical capability to successfully perform the work.

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Qualification Requirements

Contractor must be registered with System for Award Management (SAM.gov) prior to providing a quote.

52.252-1 Solicitation Provisions Incorporated by Reference Feb 1998

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

FAR 52.212-1 is amended as follows:

Period for acceptance of offers.

The Offeror agrees to hold the prices in its offer firm for **90 calendar days** from the date specified for receipt of offers.

Questions

Questions shall be submitted via email to jill.craft@usda.gov and Lizabeth.kuhaneck@usda.gov are due no later than **April 6th, 2026 at 1:00 PM Eastern Time**. This will ensure enough time to respond before the solicitation period ends. Please include the solicitation name and number as the subject line of the email.

Quote Due Date

Quotes are due no later than 1:00 PM Eastern Time on April 15th, 2026 to BOTH jill.craft@usda.gov and Lizabeth.kuhaneck@usda.gov in order to be considered for award. Please include the solicitation name and number as the subject line of the email.

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| 52.203-18 | Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017) |
| 52.240-90 | Security Prohibitions and Exclusions Representations and Certifications (Nov 2025) |

The following provisions are applicable :

- ☒ 52.204-7 System for Award Management—Registration (Nov 2025)
 - ☐ Alternate I (Nov 2025) to 52.204-7
- ☒ 52.222-52 Exemption from Application of the Service Contract Labor Standards for Certain Services-Certification (Nov 2025)

AGAR Provisions

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452.203-70 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Certification (Dec 2025)

(a) By submission of its offer, the offeror certifies that:

3. It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution.
4. Neither it nor any proposed subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution.

(b) If the offeror participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, by submission of its offer, the offeror certifies that it is compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The offeror affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the offeror will not be eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

(e) Submission of a knowing false statement relating to offeror's compliance with the above requirements and/or eligibility for the contract may subject the offeror to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) Failure on the part of the offeror or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate the contract for default.

(End of Provision)

**NOTICE FOR FILING AGENCY PROTESTS
United States Department of Agriculture (USDA) Ombudsman Program**

The USDA is committed to issuing solicitations and awarding contracts in a fair and prompt manner. The Ombudsman Program for Agency Protests (OPAP) was established to address protest issues

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within the agency, providing an alternative to costly and time-consuming litigation. Operating independently, OPAP offers relief comparable to that granted by the Government Accountability Office (GAO). Interested parties are encouraged to resolve concerns through USDA's internal Alternative Dispute Resolution (ADR) process before pursuing external forums such as the GAO. Concerns may be addressed informally or through a formal agency protest filed with either the Contracting Officer or the Ombudsman.

Informal Forum with the Ombudsman

1. **Initial Point of Contact:** Interested parties who believe a specific USDA procurement is unfair or otherwise defective should first direct their concerns to the applicable Contracting Officer.
2. **Escalation:** If the Contracting Officer is unable to address their concerns, interested parties are encouraged to contact the USDA Ombudsman for Agency Protests. Under this informal process, the agency is not required to suspend contract award performance. Utilization of the informal forum does not suspend any time requirement for filing a formal protest with the agency or other forums.
3. **Required Information:** To ensure a timely response, interested parties should provide the following information to the Ombudsman: solicitation/contract number, contracting office, Contracting Officer, and solicitation closing date (if applicable).

Formal Agency Protest with the Ombudsman

1. **Effort to Resolve:** Prior to submitting a formal agency protest, protesters must first use their best efforts to resolve their concerns with the Contracting Officer through open and frank discussions.
2. **Independent Review:** If the protester's concerns remain unresolved, an Independent Review is available by the Ombudsman. The protester may file a formal agency protest with either the Contracting Officer or, alternatively, with the Ombudsman under the OPAP program. Contract awards or performance will be suspended during the protest period unless justified in writing for urgent and compelling reasons or determined in writing to be in the best interest of the Government.
3. **Resolution Timeline:** The agency's goal is to resolve protests within 35 calendar days from the date of filing.
4. **Required Information:** Protests shall include the information set forth in FAR 33.104(a)(3). Failure to submit the required information may result in a delay or dismissal of the protest.
5. **Timeliness:** Protests must be filed within the timeframes specified in FAR 33.104.
6. **Submission:** Formal protests under the OPAP program should be submitted electronically to SPE.inquiry@usda.gov and the Contracting Officer.

Election of Forum. By initiating a protest with the USDA, the protester agrees not to pursue the same matter with the Government Accountability Office (GAO) or any other external forum while the agency protest is pending. If a protest is filed externally, the agency protest will be dismissed.